



Board of Zoning Appeals July 30th, 2026

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=YsfhTWU6vbY
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Delaware-Muncie Metropolitan Board of Zoning Appeals — Meeting Summary

Meeting Date: July 2026 (Regular Monthly Meeting)

1. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The meeting was called to order at [00:04:50](#) by the presiding officer for the Delaware-Muncie Metropolitan Board of Zoning Appeals.
- **Attendance:**
 - **Members Present:** Matt Billington, Delaney Fritsch, Steven Hines, Richard Ivy, Leslie Matthewson, and John Hamilton (noted present at [\[023:09\]](#)).
 - **Members Absent:** Christy Knapp.
 - **Quorum:** Established with 5 members initially present (later 6). It was noted that 4 votes are required for any official board action.

2. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance led by Eileen [00:05:01](#).

- **Approval of Minutes:** The May 2026 regular monthly meeting minutes were approved unanimously by a 5-0 roll call vote [00:06:11](#).
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3. Substantive Business & Board Action

Old Business

- [00:09:31](#) **BZA 36-26: IBEW Local Union 855**
 - **Sponsor / Presenter:** Dave Lehman, Business Manager.
 - **Deliberation Summary:** Request for a variance from the Delaware County Comprehensive Zoning Ordinance to allow a reduced front setback for an existing structure for a building addition (apprenticeship training facility) not to further encroach in a business zone at 4601 South Meeker Avenue, Center Township. Staff noted the existing building dates to 1991/2001 and County Building Commissioner Tom Foutch has no concerns.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (5-0) [00:12:44](#).
 - [00:13:50](#) **BZA 39-26: Steven Massey**
 - **Sponsor / Presenter:** Steven Massey.
 - **Deliberation Summary:** Continuation of a request for a modification of a previously approved variance of use (BZA 65-25) to allow the operation of a tree service business (including storage of vehicles, brush, and trees) in a farm zone at 11801 West County Road 400 South, Salem Township. The applicant detailed compliance efforts and expenditures over \$6,000 since December. Neighbors (including Nick Melander via email and Jason Reed in person) confirmed satisfaction with cleanup efforts and adherence to conditions.
 - **Item-Specific Public Input:**
 - *Jason Reed ([021:35])*: Spoke in favor as the rear-neighbor most impacted, confirming the site is clean and conditions are acceptable.
 - **Action & Vote Disposition:** Approved with conditions (prior conditions minus the 6-month time limit reinstated, limiting use to applicant only, screening materials, ending operations by 8:00 p.m., cleanup of materials, and no burning) by a roll call vote of 4-Yes, 1-No, 1-Abstain [00:27:52](#).
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New Business

- [00:29:39](#) **BZA 21-26: Davis Carrie Company LLC & Rejuvenate Residential Services**
 - **Sponsor / Presenter:** Dominiece Davis.
 - **Deliberation Summary:** Request for modification of a previously approved variance of use (BZA 7-26) to allow group housing for up to four adults (instead of three) in a

residence zone at 1904 East 22nd Street, Muncie. The applicant split a large third bedroom into two rooms following building commissioner approval and receipt of a certificate of occupancy.

- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Approved with the condition that it is for the applicant only, by a roll call vote of 5-Yes, 1-No [00:34:41](#).
- [00:36:06](#) **BZA 44-26: Mark Hollowell**
 - **Sponsor / Presenter:** Mark Hollowell (noted as Mark O'Connell in transcript).
 - **Deliberation Summary:** Request for a variance of use to allow a food vendor commissary and customer access on site in a farm zone at 16101 North Wheeling Avenue, Washington Township, to comply with health department regulations.
 - **Item-Specific Public Input:**
 - *Warren Draper* ([039:08]): Spoke in favor, praising the applicant's meticulous nature and character.
 - **Action & Vote Disposition:** Approved with conditions (applicant-only, non-transferable, and requiring ongoing health department permits/inspections for both concession stand and commissary use) by a roll call vote of 5-Yes, 1-No [00:40:15](#).
- [00:41:27](#) **BZA 45-26: Ralph W. Dirk**
 - **Sponsor / Presenter:** Ralph W. Dirk.
 - **Deliberation Summary:** Request for a variance to allow total floor area of accessory structures to be greater than that of the dwelling, and to combine two lots in a residence zone at 2210 and 2212 South Biltmore Avenue, Muncie. The applicant noted he is a disabled veteran on a fixed income using the accessory structure for personal hobby/motorcycle storage. City Building Commissioner Richard Rawlings expressed no issues.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved with the condition that accessory structures remain for personal use only (no business), by a roll call vote of 6-0 [00:44:36](#).
- [00:45:43](#) **BZA 46-26: Evan B. Jackson & Evan Jackson Racing LLC**
 - **Sponsor / Presenter:** Evan Jackson.
 - **Deliberation Summary:** Request for a variance of use to allow a machine shop and race car engine business on site in a farming zone at 9690 North County Road 500 West, Harrison Township. Applicant noted consolidation of family property following tornado rebuilding.
 - **Item-Specific Public Input:**
 - *Fred Beeler* ([050:10]): Neighboring property owner spoke in favor, noting neat property and non-disturbing noise.
 - *Robert Haynes* ([051:11]): Neighbor speaking in opposition regarding extreme noise from engine dyno testing that disrupts livestock.
 - **Action & Vote Disposition:** Approved with conditions (applicant-only, non-transferable, dyno testing limited to Monday–Friday 9:00 a.m. to 4:00 p.m., and

individual testing runs limited to maximum 15 minutes) by a roll call vote of 4-Yes, 2-No 00:48:00.

- 00:59:59 BZA 47-26: Robbie and Kimberly Stacy

- **Sponsor / Presenter:** Kimberly Stacy.
- **Deliberation Summary:** Request for a variance of use to allow the keeping of 30 hens and 2 roosters in a residence zone on premises located at 6260 East Inlow Springs Road, Liberty Township. Applicant noted animals have been kept on site for 7 years without complaints.
- **Item-Specific Public Input:**
 - *Terry Tepper* ([063:05]): Neighbor speaking in favor of keeping chickens.
 - *Sabrina Frame* ([064:56]): Neighbor speaking in favor, noting well-managed animals.
 - *Alan Tepper* ([065:43]): Neighbor speaking in favor.
 - *Cindy* ([066:32]): Local resident commented on county zoning consistency regarding commercial vs. agricultural approvals.
- **Action & Vote Disposition:** Approved with the condition that the variance is for the applicant only and non-transferable, by a roll call vote of 6-0 [069:04].

- 01:10:15 BZA 48-26: Trisha Barber

- **Sponsor / Presenter:** Audie Barber Jr.
- **Deliberation Summary:** Request for a variance to allow total floor area of accessory structures to be greater than that of the dwelling in a residence zone at 7900 East Piccadilly Road, Liberty Township, for a 16x40 portable storage unit used for personal storage and RC hobby equipment.
- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Approved with the condition that the applicant work with the building commissioner to obtain all necessary permits, by a roll call vote of 6-0 01:12:38.

- 01:14:39 BZA 49-26: Rhonda A. Jarvis

- **Sponsor / Presenter:** Rhonda Jarvis.
- **Deliberation Summary:** Request for variances of use to allow keeping farm animals on less than 5 acres, a reduced setback to closest dwelling, and operation of a 4-H business in a farm zone at 8891 North County Road 925 West, Harrison Township. The applicant and speaker David Phillips noted maximum numbers on the application reflected temporary 4-H/rescue livestock (such as borrowed pigs leaving in August). Four opposition emails were submitted.
- **Item-Specific Public Input:**
 - *David Phillips* (01:18:51): Spoke in support, explaining micro-farming context and temporary pig arrangements due to storm damage at another farm.
- **Action & Vote Disposition:** Failed/No Official Action (Vote tally: 3 Yes, 2 No, 1 Abstain; lacked the required 4 votes). Case continued to the next BZA meeting on

August 27th 01:25:20.

- 01:26:34 BZA 50-26: Timothy W. Sims
 - **Sponsor / Presenter:** Timothy W. Sims.
 - **Deliberation Summary:** Request for a variance to allow total floor area of accessory structures to be greater than that of the dwelling in a residence zone at 1501 North Hill Street, Liberty Township, to build a larger garage for classic car storage/restoration. Two support emails noted.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved with the condition that the applicant remove the existing 660 sq. ft. detached garage after completion of the new garage, by a roll call vote of 6-0 01:29:15.
- 01:30:48 BZA 51-26: Dara Ogle
 - **Sponsor / Presenter:** Shawn Silvers (spokesman) and Dara Ogle (applicant).
 - **Deliberation Summary:** Request for a variance to allow a reduced side setback for a new enclosed portable steel carport/storage building on an existing paved parking pad at 14145 East County Road 1100 North, Niles Township. County Building Commissioner Tom Foutch expressed no concerns.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved with the condition that the applicant work with the County Building Commissioner to obtain necessary permits, by a roll call vote of 6-0 01:34:15.
- 01:35:19 BZA 52-26: Jill Masters
 - **Sponsor / Presenter:** Jill Masters.
 - **Deliberation Summary:** Request for a variance of use to allow up to 8 hens and 1 rooster in a residential zone at 9710 South Fleming Street, Monroe Township, for personal pets.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved with the condition that it is for the applicant only, non-transferable, and prohibits selling eggs on site, by a roll call vote of 6-0 01:37:51.
- 01:38:46 BZA 53-26: AutoZone Inc.
 - **Sponsor / Presenter:** Austin Gideon (Pape Dawson).
 - **Deliberation Summary:** Request for variances from the City of Muncie Comprehensive Zoning Ordinance to allow an increased build-to line, no sustainability feature (rain garden), and a pole sign on a corner road for a new auto store rebuilding after a 2024 fire at 2210 North Dr. Martin Luther King Jr. Boulevard. Staff noted potential deed overlap concerns raised by a neighbor (Philip Dargo) regarding property tax records, though legal counsel clarified it does not block BZA land-use action.
 - **Item-Specific Public Input:** None.

- **Action & Vote Disposition:** Approved with the condition that the applicant work with the city building commissioner to get necessary permits, by a roll call vote of 5-Yes, 1-No [01:46:27](#).
- [01:47:23](#) **BZA 54-26: Amy Brown**
 - **Sponsor / Presenter:** Amy Brown.
 - **Deliberation Summary:** Request for a variance of use to allow a hair salon business in an existing garage in a residence zone at 313 South Manning Avenue, Muncie. City Building Commissioner Richard Rawlings noted no issues given surrounding commercial uses. Applicant requested timeline adjustments due to contractor scheduling.
 - **Item-Specific Public Input:**
 - *Dawn Dawson* ([01:54:09](#)): Spoke in favor, highlighting the applicant's meticulous property maintenance.
 - **Action & Vote Disposition:** Approved with conditions (applicant-only, non-transferable, and completion deadline set for February 2027) by a roll call vote of 6-0 [01:54:58](#).

4. Open Public Comment / Citizen Forum

- *Note:* General public comment was integrated into specific public hearing agenda items throughout the evening. No separate general citizen forum was held at the close of the meeting.

5. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - Notice was provided regarding an upcoming all-way stop conversion at US 35 and County Road 300 South scheduled for on or after Thursday, August 6th [01:37:36](#).
 - The next regularly scheduled BZA meeting will take place on **August 27th at 6:00 p.m.** in the same room [01:25:59](#).
- **Adjournment:** The meeting was officially adjourned following the announcements [01:58:12](#).